

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUPP023202: CHERYL ANN COLLINS vs ROSS DRESS FOR LESS INC, et al.

09/01/2026 in Department 42

Motion to Vacate Order of Dismissal Pursuant to CCP 473(b)

Tentative Ruling: The motion is denied.

On October 20, 2025, the Court ordered Plaintiff to post a bond within 30 days. Plaintiff's counsel Mr. Bloom was at the hearing when the court order was made, but the Court ordered Defendant Ross to give notice. Plaintiff failed to post the bond within 30 days, but Defendant Ross also failed to give notice until January 9, 2026.

After Defendant gave notice, it waited 30 days and Plaintiff still failed to post the bond. Accordingly, Defendant Ross moved to dismiss the case pursuant to CCP section 1030(d). Plaintiff opposed the motion to dismiss. In her opposition, Plaintiff acknowledged the bond had not been posted as ordered, and explained there had been a transition of counsel from Mr. Bloom at Plaintiff's counsel's law firm in October and November that led to the delay. Plaintiff's new handling attorney, Mr. Cassandra, explained that this transition from Mr. Bloom caused the delay but assured the Court that a bond would be posted before the March 9 hearing date on the motion to dismiss.

No bond was posted prior to the hearing date. Because Plaintiff had still failed to post the bond, the Court granted the motion to dismiss.

Mr. Cassandra now brings a motion to set aside the dismissal under CCP section 473(b) based on the exact same argument asserted in opposition to the motion to dismiss. Specifically, Mr. Cassandra once again explains there was a lot going on in October and November 2025 when the case was transitioned within the same law firm from Mr. Bloom to Mr. Cassandra. Mr. Cassandra does not provide information to support that any difficulties persisted beyond February 2026, and does not explain why the transition prevented him from ensuring the bond was posted prior to the March 9, 2026 hearing as represented in Plaintiff's opposition to the motion to dismiss. In sum, Mr. Cassandra fails to identify any mistake he made that resulted in the dismissal. The difficulty in transition between October and November 2025 did not result in the dismissal; it was Plaintiff's failure to post the bond prior to the March 2026 hearing date.

Because Plaintiff has failed to identify any mistake or negligent act by counsel that resulted in dismissal, whether excusable or inexcusable, Plaintiff is entitled to mandatory or discretionary relief under CCP section 473.

Additionally, CCP section 473(b) is not “ ‘a catch-all remedy for every case of poor judgment on the part of counsel which results in a dismissal.’ [Citation.]” (*Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 618–620 (*Leader*)). “Courts have therefore interpreted the mandatory relief provision concerning dismissals so as to harmonize its stated goal (giving dismissed plaintiffs comparable relief to that afforded to defaulted defendants) with the statutes which authorize dismissal: “[T]he relevant provision of section 473 may be reconciled with the discretionary dismissal statutes only if limited to those dismissals which are the procedural equivalent of defaults—i.e., those which occur because the plaintiff's attorney has

failed to oppose a dismissal motion.” (*Ibid.*) “[A] plaintiff may obtain mandatory relief under Code of Civil Procedure section 473 from a dismissal entered under the discretionary dismissal statutes (§ 583.410 et seq.) only if it occurred because the plaintiff's attorney failed to oppose the defendant's motion for dismissal; the plaintiff may not obtain mandatory relief merely by filing an affidavit in which his or her counsel avows that the dismissal came about through counsel's fault.” (*Bernasconi Commercial Real Estate v. St. Joseph's Regional Healthcare System* (1997) 57 Cal.App.4th 1078, 1080.)

In connection with Plaintiff's opposition to the motion to dismiss, the Court already considered Plaintiff's argument that the transition between counsel in the same firm caused some administrative difficulties (although specific details were not provided and still have not been provided). As in *Leader*, “[h]aving considered the reasons for plaintiffs' delay in exercising its discretion under the above statutes, it would be an “absurd result” indeed to “have the case reinstated based on the same facts offered, but discarded, in the hearing on the request to dismiss.” (*Leader, supra* 89 Cal.App.4th at pp. 618–620, citation omitted.)

Defendant Ross to give notice.